

HOUSE No. 798

The Commonwealth of Massachusetts

PRESENTED BY:

Thomas P. Walsh

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act requiring dignity, privacy, and safety for residents in nursing homes and rest homes.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Thomas P. Walsh</i>	<i>12th Essex</i>	<i>1/15/2025</i>

HOUSE No. 798

By Representative Walsh of Peabody, a petition (accompanied by bill, House, No. 798) of Thomas P. Walsh relative to the dignity, privacy, and safety of residents in nursing homes and rest homes. Elder Affairs.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 655 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act requiring dignity, privacy, and safety for residents in nursing homes and rest homes.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 1. Pursuant to the provisions of section 3, of chapter 111 of the General Laws, as
2 appearing in the 2022 Official Edition, the department shall promulgate regulations providing
3 that each nursing home and rest home as defined in section 71 of said chapter 111, shall submit a
4 plan to the department demonstrating how said facility shall treat all residents with dignity at all
5 times, and shall demonstrate that treatment of residents with dignity shall be the basis of any
6 rules and regulations and in training and orientation of all staff.

7 Section 2. Said plan shall demonstrate how such facility shall guarantee single occupancy
8 rooms to all residents with individual lavatory for each room not later than July 1, 2027. The
9 department may provide an extension of said deadline provided that the applicant demonstrates
10 good faith effort toward compliance within a reasonable time period.

Section 3. No resident of a nursing home or rest home shall be compelled to live in a room with a roommate, provided, however, a resident may opt to share a room under the following circumstances.

a. Married couples or partners

b. Family members who choose to share a room

c. Individual whose treatment plan indicate that they need the stimulation to minimize health deterioration.

A semi-private room shall be defined by regulation promulgated by the department, but shall be sufficiently spacious to provide privacy for each resident, space for facility equipment, beds, supplies, television, personal item and clothing storage and seating for visitors.

Section 4. Said nursing home or rest home shall provide that residents shall be given the option of in room dining at no additional increase in fees.

Section 5. No nursing home or rest home shall permit three or more residents per room.

Section 6. Penalties. Failure of a nursing home or rest home to comply with the provisions of this chapter, unless a waiver of the deadline as provided in section 2, shall be determined to be deficient and a fine of \$1,000 dollars per day for each room determined to be deficient.